

ORDINANCE NO. 25

TOWN OF DECATUR, MISSISSIPPI

AN ORDINANCE REQUIRING BUILDING PERMITS TO BE APPLIED FOR AND GRANTED PRECEDENT TO THE ERECTION, MOVING, REMODELING OR MODIFYING ANY: COMMERCIAL, RESIDENTIAL, AUXILARY STRUCTURES, MODULAR HOME, TRAILER, SANITARY SEWER SYSTEM, CULVERT, DRIVEWAY, WATER AND SEWER TAP OR SIGNS IN THE TOWN OF DECATUR, MISSISSIPPI.

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, MISSISSIPPI:

SECTION 1. From and after the effective date of this ordinance, any person or persons desiring to build, erect, move, remodel or modify any: commercial, residential, auxiliary structures, modular home, trailer, sanitary sewer system, culvert, driveway, water or sewer tap or commercial signs in the Town of Decatur, Mississippi, shall apply for a building permit as hereafter provided.

SECTION 2. The clerk of the Town of Decatur, Mississippi, is hereby designated as the officer to receive all applications for building permits. All applications for building permits shall be made on standard forms to be kept on file in the office of the Clerk, and any person or persons desiring to make application for a building permit shall file such application with the Clerk, and all such applications received by the Clerk shall be filed in the order received.

SECTION 3. Any person or persons filing an application for a building permit shall be required to deposit an application fee as set in Appendix 1, with the Clerk, which fee shall be full compensation to the Town of Decatur for issuance of any one permit. In the event any application for building permit is denied or rejected by the governing body, as herein after provided the deposit so filed shall be forfeited to the Town and shall be considered as full payment for the Town making such investigation of the proposed building site as the Town may deem necessary.

SECTION 4. All applications that require zoning variances or do not meet the current zoning ordinance will be forwarded to the Town of Decatur Zoning Board for their review. The Town of Decatur Zoning Board will have the authority to approve or deny the permit on the basis as to its compliance with the Town of Decatur Zoning Ordinance.

SECTION 5. Upon receipt of any application for a building permit and deposit of fee as herein required, the Clerk shall file same, as provided herein, and shall refer the same to the Mayor, Public Works Director and the chairman of the Zoning Board, if applicable, for their investigation and consideration. All applications shall be reviewed in the order received. The Zoning Board shall meet at their next scheduled Zoning Board meeting to rule on the application. The Mayor and Public Works director shall investigate the application and make their ruling. At the next scheduled monthly Board of Aldermen meeting the Public Works Director and the Zoning Board chairman shall review their findings, and make

recommendations to approve or deny the permit to the Town Board. The Town Board has full authority to approve or deny the recommendations as presented. The Board shall further have the authority to deny or reject applications for building permits for good causes shown as, for example, when it is shown that proposed permitted intent will constitute a fire hazard, a health menace, a nuisance, foul odor or violation of the zoning ordinance.

SECTION 6. In the event any person or persons shall proceed to erect or install any commercial or residential entity described in Section 1 of the Ordinance, within the Town of Decatur after the effective date of this Ordinance, the Clerk of this Board is directed to give notice in writing to such person or persons to cease its progress until a building permit is granted as required herein. If within five (5) days from the date of such notice such progress is not ceased, the person or persons causing such event to be made, shall be guilty of a misdemeanor, and upon conviction thereof may be subject to a fine not to exceed five hundred dollars (\$500.00) and/or imprisonment not to exceed thirty (30) days, or by both fine and imprisonment.

SECTION 7. The Clerk of this Board is hereby directed to publish notice of this Ordinance in the Newton County Appeal with the December 14, 2016 publication as required by law.

SECTION 8. This Ordinance shall take effect and be in force on and after the first day of January 2017.

As amended on February 17, 2017, by vote of the Town of Decatur Board of Aldermen by the following vote: Motion made by Alderman Sid Etie, seconded by Alderwoman Joy Hayes, votes of yes by Alderpersons: Etie, Hayes, Anderson, Harris and Buntyn, and votes of Nay: none.

Adopted and amended this the 17th day of February, 2017.

Appendix 1

TOWN OF DECATUR, NEWTON COUNTY, MISSISSIPPI

ORDINANCE 25

Residential & Governmental Building Permit Fee.....\$5.00 (Five Dollars)

Commercial Building Permit Fee.....\$25.00 (Twenty Five Dollars)